



SPONSOR: Rep. Osienski & Rep. Harris & Sen. Walsh
Reps. Bolden, K. Johnson, Ross Levin, Kamela Smith,
K. Williams, Yearick, Griffith; Sens. Hoffner, Huxtable,
Richardson, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 268

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO ASSAULT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 612, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 612. Assault in the second degree; class C or D felony.

4 (a) A person is guilty of assault in the second degree when:

5 (1) The person recklessly or intentionally causes serious physical injury to another person; or

6 (2) The person recklessly or intentionally causes physical injury to another person by means of a deadly
7 weapon or a dangerous instrument; or

8 (3) The person intentionally causes physical injury to a law-enforcement officer, a volunteer firefighter, a full-
9 time firefighter, emergency medical technician, paramedic, fire police officer, fire marshal, correctional officer, a
10 sheriff, a deputy sheriff, public transit operator, hospital security officer or constable, code enforcement constable, ~~or a~~
11 code enforcement ~~officer~~ officer, or a postal worker who is acting in the lawful performance of duty. For purposes of
12 this subsection, if a law-enforcement officer is off duty and the nature of the assault is related to that law-enforcement
13 officer's official position, then it shall fall within the meaning of "official duties" of a law-enforcement officer; or

SYNOPSIS

This Act elevates the charge for assaulting a postal worker acting in the lawful performance of duty from assault in the third degree to assault in the second degree.